



File No.: EXP202313343

## RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: B.B.B. (hereinafter, the claimant) exercised the right of Access against METRO DE MADRID (hereinafter, the respondent) without receiving the legally established response to their request. The claimant states that, after an incident at the Ciudad de Los Ángeles metro station, they requested access to images from the video surveillance system of that station, receiving a response on November 24, 2022, informing them that the images would not be provided, but were available for the corresponding actions to be carried out by the State Security Forces and Corps. The claimant reiterated their request on November 24, 2022, receiving a new response on November 25, 2022, in which the respondent reiterated their refusal, as well as the blocking of images for their provision, should they be required by the State Security Forces and Corps. The claimant provides a copy of the communications exchanged with the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claimant's requests had been satisfied. Consequently, on October 25, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any allegations they deemed appropriate within ten working days.

Namely:

"...Metro proceeded to reserve the images, preventing their automatic deletion and responded to the access request on November 24, 2022. To this end, an email was sent to the address provided by the interested party in their request form, including a certification stating the following:

"Mr. A.A.A., \*\*\*POSITION.1, on behalf of METRO DE MADRID, S.A. CERTIFIES THAT:

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1. In the activity of processing personal data from video surveillance for which Metro de Madrid, S.A. is responsible, recordings captured by cameras C1E01 and C2E02 are registered, corresponding to the escalators at the entrance to the Ciudad de los Ángeles metro station, on November 3, 2022, between 11:25 and 11:40 hours.

2. The purpose registered in our R.A.T. is: "Control and surveillance of railway operations (operation and maintenance) and the safety and protection of persons and property located in the facilities and mobile material of Metro de Madrid."

And for this to be duly noted, for the purpose of granting the right of access to personal data requested, in accordance with the provisions of Instruction 1/2006, of November 8, and in Report 0032/2010 of the Spanish Data Protection Agency, I issue and sign this certification in Madrid, on November 24, two thousand twenty-two..."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may formulate any allegations they consider appropriate.

The claimant considers the information provided by the respondent to be insufficient and insists that

their right has not been addressed.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by an interested party and investigating, as appropriate, the reasons for such complaints.

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Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure set forth in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on October 25, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission to processing was notified to the claimant. After this period, the interested party may consider their complaint upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, among which is included "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

## Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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Furthermore, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

## IV

### Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), and the existence of automated decisions.

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including the preparation of profiles, and information on transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing shall not negatively affect the rights and freedoms of others.

V

## Conclusion

During the processing of this procedure, the entity being complained about has responded to this Agency, but it does not demonstrate having complied with the request as set forth in the data protection regulations.

The complainant requested the recording of some images where, according to their statement, they appear in an altercation that occurred in the metro facilities. The entity being complained about has responded by stating that it could not provide the images but that they would be kept in case they were required by the STATE SECURITY FORCES AND BODIES. Furthermore, it adds the impossibility of identifying the complainant since the photograph provided by them was blurry. In this case, the entity should have requested another photograph from the complainant.

The aforementioned regulations do not allow for the denial of the request due to the failure to remedy a deficiency such as a blurry photograph; nor can a certificate that details nothing or almost nothing be sent instead of a detailed transcription of the recording as a measure to protect the identity of third parties.

The right of access must be addressed, and if it is necessary to seek other means to protect the identity of third parties, such means already exist, such as pixelation of images.

In light of the cited provisions and other generally applicable regulations, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ACCEPT the complaint filed by B.B.B. considering that the provisions of Article 15 of the GDPR have been infringed and to urge METRO DE MADRID with NIF A28001352, to send to the complainant, within ten working days following the notification of this resolution, a certification that addresses the requested right or a reasoned denial indicating the reasons why the request cannot be addressed, in accordance with the provisions set forth in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to B.B.B. and to METRO DE MADRID.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency at C/ Jorge Juan, 6, 28001 – Madrid, [www.aepd.es](http://www.aepd.es), within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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